

in not filing the opposition pleadings in this case. The Court does not have before it in this case the pleadings necessary for the Court to rule on the merits of the consolidation motion. The Court therefore continues the hearing.

Moving parties shall file in this Class Action copies of all of their moving papers and their reply previously filed in the Landlord Action **by January 29, 2026**.

5. 9:00 AM CASE NUMBER: C23-03203
CASE NAME: BRYANT POTTS VS. BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
***HEARING ON MOTION IN RE: RELIEF FROM WAIVER OF DISCOVERY OBJECTIONS**
FILED BY: BUILDING CONNECTIONS BEHAVIORAL HEALTH, INC
TENTATIVE RULING:

Off calendar. Withdrawn by moving party.

6. 9:00 AM CASE NUMBER: C23-03307
CASE NAME: PAWNEE LEASING CORPORATION VS. SARFARAZ DHILLON
***HEARING ON MOTION IN RE: RELEASE AND DISMISS ABSTRACT OF JUDGMENT**
FILED BY: DHILLON, SARFARAZ SINGH
TENTATIVE RULING:

The Abstract of Judgment issued on 6/3/2024 is ordered quashed as to Sarfaraz Singh Dhillon as of 8/11/2025. Plaintiff is ordered to give notice to the County in which the Abstract of Judgment was recorded.

The Court notes that entities (such as KUT Global Corporation) cannot be self-represented, so if KUT Global is a separate entity (as opposed to a dba), it will need to appear via answer with an attorney of record.

7. 9:00 AM CASE NUMBER: C24-00237
CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
FILED BY: BEARE, CONNOR JEREMY
TENTATIVE RULING:

Hearing required on one issue.

Plaintiff Connor Beare moves for preliminary approval of his class action with defendant Law Offices of Mitchell D. Bluhm & Associates, LLC and Robert Bradley Ridgeway ("Defendants").

A. Background and Settlement Terms

The original complaint was filed January 31, 2024, raising class action claims under the California Rosenthal Fair Debt Collection Practices Act and California Civil Code sections 1812.700-1812.702, on behalf of 13 individuals who received debt-collection letters from defendants. Defendants allegedly did not provide a statutorily-required "Consumer Collection Notice" in proper form and substance in connection with efforts to collect a debt. It further alleged that Robert Ridgeway, an attorney employed by the law office in question, had failed to obtain a debt collection license from the California Department of Financial Protection and Innovation as required by Financial Code §100001.

The proposed settlement would certify a class of thirteen persons who received the letters from defendant. Defendant would pay \$6,500 (based on a statutory penalty provision), with a minimum payment of \$500 to each class member. Defendants would be primarily responsible for administering the notice and implementation of the settlement.

If some class members are located and sent checks, but do not cash the checks, the remaining funds would be paid to a cy pres recipient, Bay Area Legal Aid. Counsel is required to attest that they do not have any pecuniary interest in the cy pres recipient, and must “notify the court if the attorney has a connection to or a relationship with a nonparty recipient.” (C.C.P. § 382.4.) In addition, the cy pres recipient must be qualified under Code of Civil Procedure section 384(b), which requires that cy pres funds be provided “to nonprofit organizations or foundations to support projects that will benefit the class or similarly situated persons, or that promote the law consistent with the objectives and purposes of the underlying cause of action, to child advocacy programs, or to nonprofit organizations providing civil legal services to the indigent[.]” of the distribution that could reasonably create the appearance of impropriety as between the selection of the recipient of the money or thing of value and the interests of the class.” Bay Area Legal Aid meets this requirement.

Defendants would agree not to engage in further debt collection practices in California without proper registration. Plaintiff would receive a service award of \$2,000. Plaintiff’s counsel would apply for an attorney fee of \$45,000, as part of the process of final approval of the settlement.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. Objections may be made in writing within sixty days after initial notice, or may object at the final fairness hearing. Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable.

The settlement contains release language covering all of the “released claims,” “arising from or relating to collection letters mailed by or on behalf of Defendants in the form attached as Exhibit “1” to Plaintiff’s Class Action Complaint filed herein[.]” (Agreement, Par. 2.16.) Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.”] “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Formal written discovery was undertaken. The matter settled after arms-length negotiations.

Counsel attest that they have analyzed the case, and that the result achieved in this litigation is fair, adequate, and reasonable.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.”

(See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks \$45,000 as fees. Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval. Counsel are directed to provide a lodestar figure for any hearing on final approval.

Similarly, the requested representative payment of \$2,000 for plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

D. Conclusion

Hearing required in order to schedule filing of a proper declaration. Counsel need to provide a declaration with respect to any relationship with the cy pres recipient in compliance with Code of Civil Procedure section 382.4. Subject to provision of such information the Court would find that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval.

If preliminary approval is granted, counsel will be directed to prepare an order reflecting this tentative ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

8. 9:00 AM CASE NUMBER: C24-03434
CASE NAME: DANIEL OLEJNIK-ROLIZ VS. MARCO ANTONIO MEZA ORTEGA
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY:
***TENTATIVE RULING**
Off calendar. Moving party was dismissed 12/18/25.

9. 9:00 AM CASE NUMBER: C25-00744
CASE NAME: SHELBY SIFERS VS. NBCUNIVERSAL MEDIA, LLC
HEARING ON DEMURRER TO: COMPLAINT